

Krishan Gopal v. Dakhidanchal Vidut Vitaran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 12 February 2014 · Writ - C No. 8513 of 2014 · **Writ disposed; licensee to decide the application under clause 6.5 within six weeks.**

HEADNOTE

A consumer's writ seeking a direction to decide an application for meter installation and billing as per meter reading was disposed of by relegating the grievance to clause 6.5 of the Electricity Supply Code, 2005, with a direction to the licensee to decide the application within six weeks of a certified copy of the order being filed.

FACTUAL SUMMARY

Krishan Gopal petitioned the Allahabad High Court against Dakhidanchal Vidut Vitaran Nigam Ltd. and another. His only prayer was that the respondents be directed to decide his application regarding installation of a meter and raising of the bill as per the meter reading. Counsel for the petitioner and for the Power Corporation were heard. The Court did not go into the merits of that application.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

meter installation and billing as per reading

HOLDING

A grievance seeking decision of an application for installation of a meter and for raising the bill as per the meter reading is redressable under clause 6.5 of the Electricity Supply Code, 2005; the licensee was directed to decide the application within six weeks of a certified copy of the order being filed, and the writ was disposed of without a merits determination. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A METER SHOULD BE INSTALLED AND THE BILL RAISED AS PER THE METER READING

Left to the licensee under clause 6.5. ¶ 1